

23STCV91632 23STCV91632

County: los-angeles

Division: Civil Law and Motion

Department: 311

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Case Number: 23STCV91632 Hearing Date: August 7, 2026 Dept: 311

SUPERIOR

COURT OF CALIFORNIA, COUNTY OF LOS ANGELES

Civil

Division

Central

District, Stanley Mosk Courthouse, Department 311

Tentative

Ruling

23STCV01632

CALIFORNIA

DEPOSITION REPORTERS, INC., A CALIFORNIA CORPORATION vs BRIAN D. WITZER, et al.

August

7, 2026

8:30

AM

NATURE OF PROCEEDINGS:

PLAINTIFF'S MOTION FOR AN ASSIGNMENT ORDER AND RESTRAINING ORDER.

RULING:

Preliminarily, the Court inquires whether Defendant's bankruptcy is pending, causing a case stay, considering Defendant's notice filed on February 3, 2023. (Cal. Rules of Court, rule 3.650(a).)

The Court would grant the unopposed Motion if Defendant's bankruptcy is no longer pending and the stay has been lifted. However, the Court file has no entry addressing the completion of Defendant's bankruptcy or the stay.

The Court Orders Plaintiff to file proof of status of the Defendant's bankruptcy within 10 days.

The Court will consider a proposed Order granting the Motion, which Plaintiff shall serve and lodge within 10 days.

The Court schedules a continued hearing on the present Motion on August 28, 2026 at 8:30 a.m. in Dept. 311.

Plaintiff to give notice.

I.

BACKGROUND

On September 25, 2023, the Court filed a form Default Judgment, awarding \$41,435.97 to CALIFORNIA DEPOSITION REPORTERS, INC. (Plaintiff) against LAW OFFICES OF BRIAN D. WITZER (Defendant).

On June 23, 2026, Plaintiff filed the Motion for an Assignment and Restraining Order, primarily on the ground that the Default Judgment remains unsatisfied.

There is no Opposition filed to this matter.

II.

LEGAL STANDARD

“The EJP ‘is a comprehensive scheme governing the enforcement of all civil judgments in California.’ Under this scheme, a lien is created on all nonexempt personal property when the debtor is served with notice to appear for examination.... ‘Except as otherwise provided by law, all property of the judgment debtor is subject to enforcement of a money judgment.’ (§ 695.010, subd. (a).) However, ‘property of the judgment debtor that is not assignable or transferable is not subject to enforcement of a money judgment.’ (§ 695.030, subd. (a).)” (Juarez v. Ward (2023) 88 Cal.App.5th 730, 735.) “For purposes of the Enforcement of Judgments Law, a judgment creditor is someone ‘in whose favor a judgment is rendered.’” (See § 680.240.)” (Luxury Asset Lending, LLC v. Philadelphia Television Network, Inc. (2020) 56 Cal.App.5th 894, 914.)

California's Enforcement of Judgments Law (EJP) applies to a judgment, and includes orders. (Lucky United Properties Inv., Inc. v. Lee (2010) 185 Cal.App.4th 125, 143–144; Newland v. Superior Court (1995) 40 Cal.App.4th 608, 615; Constellation-F, LLC v. World Trading 23, Inc. (2020) 45 Cal.App.5th 22, 31.)

Code of Civil

Procedure section 708.510 is a procedure within the Enforcement of Judgments Law (§ 680.010 et seq.) (EJP), allowing judgment creditors to receive involuntary assignments of judgment debtors' interests in payments. (Wanke, Indus., Com., Residential, Inc. v. AV Builder Corp. (2020) 45 Cal.App.5th 466, 475.) The “court may order the judgment debtor to assign to the judgment creditor....” (Code of Civil Procedure §708.510.)

“ ‘When an application is made pursuant to Section 708.510 or thereafter, the judgment creditor may apply to the court for an order restraining the judgment debtor from assigning or otherwise disposing of the right to payment that is sought to be assigned.’ ” (Landstar Glob. Logistics, Inc. v. Robinson & Robinson, Inc. (2013) 216 Cal.App.4th 378, 390.)

III.

ANALYSIS

Plaintiff requests an

order assigning Defendant's rights to payment due, owing, or to become due, and a restraining order against interference with the rights to payment.

"An assignment order is a court order assigning to the judgment creditor or a receiver appointed pursuant to CCP § 708.610 et seq.... the debtor's right to payments due from a third person. It is authorized by CCP § 708.510 et seq...." (Cal. Prac. Guide Enf. J. & Debt § 6:1422.5.)

The treatise summarizes some applicable law, as follows:

[6:1440] Court's discretion to issue order: The court has broad discretion in determining whether to order an assignment, and in fixing the amount to be assigned (subject to the limitations discussed above, ¶ 6:1437 ff.).

The court may consider all relevant factors, including but not limited to:

.
The reasonable economic needs of a natural person judgment debtor and those supported partly or wholly by the debtor;

.
Payments the judgment debtor is required to make or that are deducted in satisfaction of other judgments and wage assignments;

.
The amount remaining due on the money judgment; and

.
The amount remaining to be received on the right to payment. [CCP § 708.510(c)]

(Id., §§ 6:1422.5-6:1448.)

Having read the Motion,
the Court finds that Plaintiff has shown compliance with requirements of Code
of Civil Procedure, sections 708.510 et seq. and 708.610 et seq. Further, the
Judgment Debtor has assignable rights to the payments that properly may be used
to satisfy the Judgments that are in favor of Plaintiff as the Judgment
Creditor. Finally, no Opposition has been filed to support consideration of any
other factors.

IV.

CONCLUSION

The Court would grant the unopposed
Motion after proof that Defendant's bankruptcy is resolved and the stay is lifted.